



Australian Government

Comcare

7 November 2022

Dr Richard McLean

By Email Only: rich@richmclean.com.au

Dear Dr McLean,

Recent Correspondence

We refer to recent communication between yourself and Comcare and note that our emails to you of 24 October and 3 November 2022 contained errors. We sincerely apologise for these errors and for any confusion and distress caused.

We confirm that:

1. The status of your claim number 1326583/1 for anxiety state and depressive disorder under section 14 of the *Safety, Rehabilitation and Compensation Act 1988* (SRC Act) continues to be 'rejected'.
2. Comcare's original determination of 26 May 2021 and reviewable decision of 16 August 2021 have not changed.
3. Your Administrative Appeals Tribunal (AAT) application continues to be active with the next listing being **for hearing by video on Thursday 8 December 2022 at 10.00am**.

Any queries about your AAT proceedings should be directed to either:

- the AAT – (03) 9454 6100 or 1300 228 333, or
- Comcare's legal representatives - HBA Legal, Ms Kate Watson via email at kate.watson@hbacrawford.com.au

Communicating with Comcare

To assist with the effective management of your correspondence, ensure the health and wellbeing of our staff and support productive communication with you, we are putting in place a formal Communication Protocol.

From Monday 7 November 2022 we ask that you adhere to the following:

Phone Contact Restrictions

- Comcare staff **will not be talking to you** about your rejected claim.
- Please do not call any staff member at Comcare either through our Contact Centre, or via a direct telephone line.
- If you continue to make phone calls to Comcare, your calls will be either unanswered or terminated upon commencement.

Written Correspondence Restrictions

- To ensure any correspondence relating to the active AAT matter is appropriately managed, Comcare requests that you email HBA Legal directly at kate.watson@hbacrawford.com.au
- If you choose to write to Comcare, we ask that you:
 - Do not send further correspondence that is unrelated to the active AAT matter.
 - Direct all correspondence to mailbox.feedback@comcare.gov.au
- Any correspondence unrelated to the active AAT proceedings will not be responded to and documents will be saved to your claim file for record keeping purposes only.

This Communication Protocol will remain in place and be reviewed six months from 7 November 2022, or sooner, to ensure its effectiveness.

We thank you for your cooperation.

Yours sincerely



Trent McCormick
Director, Claims Client Experience